

TENTATIVE RULING FOR CIVSB2315002
Department S24 - Judge Carlos M. Cabrera

This courtroom follows California Rules of Court, rule 3.1308(a)(2) for tentative rulings. See also San Bernardino Superior Court Local 561. **If both sides do not appear, the tentative will simply become the ruling.**

Contreras, et al v. Ontario Grove Healthcare & Wellness Centre, LP, et al

Motion: Demurrer and Motion to Strike

Movant: Ontario Grove Healthcare & Wellness Centre, LP dba Bella Vista Healthcare Center (Ontario Grove/Defendant)

Respondent: Gregorio Contreras (Gregorio), Elia Contreras (Elia), and Noe Contreras (Noe) (individually by first name collectively, Plaintiffs)

RELEVANT FACTUAL AND PROCEDURAL BACKGROUND

On July 5, 2023, Plaintiffs filed a Complaint against Ontario Grove, alleging the following causes of action: (1) Battery; (2) Negligence; (3) IIED; (4) Statutory Breach of Warranty of Habitability (Civ. Code, §§ 1941, 1941.1); (5) Tortious Breach of Implied Warranty of Habitability; (6) Violation of Business & Professions Code §§ 17200, et seq.; (7) Breach of Covenant of Quiet Enjoyment; (8) Negligent Violation of Statutory Duty to Maintain Habitable Conditions; (9) Breach of Contract; (10) Private Nuisance; and (11) Public Nuisance. On March 18, 2026, Defendant filed a general demurrer to the First, Third, Fourth, Fifth, Sixth, Seventh, Ninth, Tenth, and Eleventh causes of action. Defendant also filed a Motion to Strike, seeking to strike all allegations relating to punitive damages. Plaintiffs oppose.

ANALYSIS

A demurrer is a pleading used to test the legal sufficiency of other pleadings, i.e., it raises issues of law, not fact, regarding the form or content of the opposing party's pleading. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) It is not the function of a demurrer to challenge the truthfulness of the complaint; and for purposes of the ruling on a demurrer, all facts pleaded in the complaint are assumed to be true however improbable they may be. (*Aubry v. Tri-City Hosp. Dist.* (1992) 2 Cal.4th 962, 966-967.) The court assumes the truth of all material facts that have been properly pleaded, of facts that may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.) However, the Court does "not accept as true contentions, deductions, or conclusions of fact or law." (*In re Ins. Installment Fee Cases* (2012) 211

Cal.App.4th 1395, 1402, citing *Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) “[T]he question of plaintiff’s ability to prove these allegations, or the possible difficulty in making such proof does not concern the reviewing court.” (*Concerned Citizens of Costa Mesa, Inc. v. 32nd Agricultural Assn.* (1986) 42 Cal.3d 929, 936 (citations omitted).) The complaint is also to be liberally construed. (Code of Civ. Proc. §452.)

Meet and Confer

Defense counsel Colin Whittington filed a declaration which establishes that on March 10, 2026, at 3:41 p.m., he attempted to telephonically contact Plaintiffs’ Counsel, but no one answered the call. As a result, he left a detailed voicemail message regarding Defendant’s intent to meet and confer. Immediately following the telephone call, Attorney Whittington sent a detailed meet and confer letter to Plaintiffs’ Counsel via email. However, Plaintiffs never responded. (Whittington Decl. ¶¶ 2-4, Exh. A.) The court will find that Defendant has met their meet and confer requirement and will thus rule on the merits of the demurrer. Plaintiff’s counsel should be prepared at hearing to address why he ignored Mr. Whittington.

I. General Demurrer

A general demurrer challenges a complaint for failure to state a cause of action under Code of Civil Procedure section 430.10, subdivision (e). It is granted only where the facts alleged on the fact of the complaint fail to state a valid claim under any possible legal theory entitling the plaintiff to relief against the demurring defendant. (*Sheehan v. San Francisco 49ers, Ltd.* (2009) 45 Cal.4th 992, 998.) The plaintiff may be mistaken as to the nature of the case or the legal theory on which he or she can prevail, but if the essential facts of some valid cause of action are alleged, the complaint is good against a general demurrer. (Weil & Brown, Cal. Prac. Guide: Civ. Proc. Before Trial § 7:41 (hereafter Weil & Brown), citing *Quelimane Co. v. Stewart Tile Guaranty Co.* (1989) 19 Cal.4th 26, 38-39.)

All that is necessary as against a general demurrer is to plead facts showing that the plaintiff may be entitled to some relief. In passing upon the sufficiency of a pleading, its allegations must be liberally construed with a view to substantial justice between the parties.” (*Fundin v. Chicago Pneumatic Tool Co.* (1984) 152 Cal.App.3d 951, 955; *Michaelian v. State Compensation Insurance Fund* (1996) 50 Cal.App.4th 1093, 1104-1105.)

The complaint includes matters shown in attached exhibits and incorporated by reference. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94.) No other extrinsic evidence can be considered. (*Ion*

Equipment Corp. v. Nelson (1980) 110 Cal.App.3d 868, 881.) A demurrer predicated on a complaint's failure to state facts sufficient to constitute a cause of action (Code of Civ. Proc. §430.10, subd. (e)) should be granted only when the facts alleged on the face of the complaint fail to state *any* valid claim entitled to the plaintiff or disclose a complete defense to relief. Even if a plaintiff is mistaken as to the nature of the case or the legal theory on which he/she could prevail, the complaint is good against a general demurrer if the essential facts allege some valid cause of action. (*Gruenberg v. Aetna Ins. Co.* (1973) 9 Cal.3d 566, 572.)

Leave to Amend

Courts are very liberal in permitting amendments, not only where a complaint is defective in form, but also where substantive defects are apparent: "Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given." (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) It is an abuse of discretion for the court to deny leave to amend where there is any *reasonable possibility* that plaintiff can state a good cause of action. (*Bounds v. Superior Court* (2014) 229 Cal.App.4th 468, 484 [court should grant leave to amend if in all probability plaintiff will cure defect].)

However, no abuse of discretion will be found unless a potentially effective amendment is "both apparent and consistent with the plaintiff's theory of the case." (*Camsi IV v. Hunter Technology Corp.* (1991) 230 Cal.App.3d 1525, 1542.) "Leave to amend *should be denied* where the facts are not in dispute and the nature of the claim is clear, but no liability exists under substantive law." (*Lawrence v. Bank of America* (1985) 163 Cal.App.3d 431, 436 (emphasis added); *Schonfeldt v. State of Calif.* (1998) 61 Cal.App.4th 1462, 1465 [if no liability as a matter of law, leave to amend should not be granted].)

First Cause of Action

The elements of civil battery are: (1) defendant intentionally performed an act that resulted in a harmful or offensive contact with the plaintiff's person; (2) plaintiff did not consent to the contact; and (3) the harmful or offensive contact caused injury, damage, loss or harm to plaintiff. (*Brown v. Ransweiler* (2009) 171 Cal.App.4th 516, 526-527.)

Despite Plaintiffs' repeated use of the words "intentionally," "deliberately," etc., there are no facts alleged demonstrating that defendant acted with the intent to cause a harmful or offensive contact. Such allegations, at most demonstrate a negligent omission, given that there is no

allegation demonstrating that Defendant had prior knowledge of the bedbug infestation in Plaintiffs' room or the Rehabilitation Center.

Third Cause of Action

To state a cause of action for intentional infliction of emotional distress a plaintiff must show: (1) outrageous conduct by the defendant; (2) the defendant's intention of causing or reckless disregard of the probability of causing emotional distress; (3) the plaintiff's suffering severe or extreme emotional distress; and (4) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. (*Yau v. Santa Margarita Ford, Inc.* (2014) 229 Cal.App.4th 144, 160.)

In the case at hand, the elements of intent and damages are insufficiently plead. Similar to Plaintiff's battery claim as discussed above, the element of defendant's intention of causing or reckless disregard of the probability of causing emotional distress is not sufficiently plead.

Fourth, Fifth, Seventh and Ninth Cause of Action

Defendant argues that Plaintiffs' Fourth (Statutory Breach of Warranty of Habitability), Fifth (Tortious Breach of Implied Warranty of Habitability), Seventh (Breach of Covenant of Quiet Enjoyment), and Ninth (Breach of Contract) causes of action are insufficiently plead on the grounds that although Plaintiffs have alleged that there was a written lease agreement created on July 5, 2021 (see Compl. ¶¶ 73, 96, 136), Plaintiffs have failed to allege any specific breach of any material provision of the purported lease agreement, a copy of which is also omitted from the Complaint.

However, "a warranty of habitability is implied by law in residential leases." (*Green v. Superior Court* (1974) 10 Cal.3d 616, 637.) The implied warranty imposes upon the landlord the obligation to maintain leased dwellings in a habitable condition throughout the term of the lease. (*Smith v. David* (1981) 120 Cal.App.3d 101, 109.) Similarly, every lease agreement also includes an implied covenant of quiet enjoyment protecting the lessee from any act or omission by the lessor which interferes with the lessee's right to use and enjoy the premises for the purposes contemplated by the lease. (*Avalon Pacific-Santa Ana, L.P. v. HD Supply Repair & Remodel, LLC* (2011) 192 Cal.App.4th 1183, 1191; Civ. Code § 1927.)

Furthermore, in *Construction Protective Services, Inc. v. TIG Specialty Ins. Co.* (2002) 29 Cal.4th 189, 198-199, the California Supreme Court discussed that a plaintiff may plead a contract's legal effect, rather than pleading its terms verbatim or attaching a copy. As such,

Plaintiffs were not required to attach a fully signed copy of the lease agreement in order to sufficiently state a valid breach of contract claim.

Sixth Cause of Action

Business and Professions Code section 17200, also known as the Unfair Competition Law (“UCL”), defines unfair competition to include any unlawful, unfair, or fraudulent business act or practice. (*Cel-Tech Comm., Inc. v. Los Angeles Cellular Tel. Co.* (1999) 20 Cal.4th 163, 180.) The purpose of the UCL “is to protect both consumers and competitors by promoting fair competition in commercial markets for goods and services.” (*Kasky v. Nike, Inc.* (2002) 27 Cal.4th 939, 949.) Because the UCL is written in the disjunctive, it establishes three varieties of unfair competition—acts or practices which are unlawful, or unfair, or fraudulent.” (*Podolsky v. First Healthcare Corp.* (1996) 50 Cal.App.4th 632, 647.)

In regard to the “unlawful” prong, the Court in *Klein v. Chevron U.S.A., Inc.* (2012) 202 Cal.App.4th 1342, 1383, explains that it “borrows violations of other laws ... and makes those unlawful practices actionable under the UCL.” (*Lazar v. Hertz Corp.* (1999) 69 Cal.App.4th 1494, 1505.) “‘[V]irtually any law or regulation—federal or state, statutory or common law— can serve as [a] predicate for a ... [section] 17200 “unlawful” violation.’ [Citation].” (*Paulus v. Bob Lynch Ford, Inc.* (2006) 139 Cal.App.4th 659, 681.)

As for the “unfair” prong, a business practice is “unfair” if (1) the consumer injury is substantial; (2) the injury is not outweighed by any countervailing benefits to consumers or competition; and (3) the injury could not reasonably have been avoided by consumers themselves. (*Camacho v. Automobile Club of Southern California* (2006) 142 Cal.App.4th 1394, 1403.)

On the other hand, a business practice is “fraudulent” if it is “likely to deceive the public. [Citations.] It may be based on representations to the public which are untrue, and “also those which may be accurate on some level, but will nonetheless tend to mislead or deceive.... A perfectly true statement couched in such a manner that it is likely to mislead or deceive the consumer, such as by failure to disclose other relevant information, is actionable under” the UCL. [Citations.] The determination as to whether a business practice is deceptive is based on the likely effect such practice would have on a reasonable consumer. [Citation.]” (*McKell v. Washington Mutual, Inc.* (2006) 142 Cal.App.4th 1457, 1471.)

Aside from the allegation that Defendant engaged in unlawful practices, Plaintiffs also allege that Defendant violated Civil Code section 1941 (see Compl. ¶ 113), which requires the

“lessor of a building intended for the occupation of human beings must, in the absence of an agreement to the contrary, put it into a condition fit for such occupation, and repair all subsequent dilapidations thereof, which render it untenable, except such as are mentioned in section nineteen hundred and twenty-nine.” Such allegation, in conjunction with Plaintiffs’ general allegations that Defendant failed to provide Plaintiffs with a habitable unit for Plaintiffs’ occupation, is sufficient to state a UCL violation under the unlawful prong.

Seventh Cause of Action

The elements of a claim for breach of the covenant of quiet enjoyment are (1) a lease agreement between plaintiff and defendant, (2) absence of language contrary to the implied covenant that tenant shall have quiet enjoyment and possession, (3) act or omission of the landlord which “substantially interfere[s] with a tenant[‘]s right to use and enjoy the premises for the purposes contemplated by the tenancy”; and (4) an applicable remedy. (*Andrews v. Mobile Aire Estates* (2005) 25 Cal.App.4th 578, 588-591.)

The implied covenant of quiet enjoyment and possession is breached when there is a wrongful actual or constructive eviction of the tenant. (*Standard Live Stock Co v. Pentz* (1928) 204 Cal. 618, 625.) There is a constructive eviction when there is a substantial and material interference with the tenant’s beneficial use and enjoyment of the premises, even though the tenant is not actually deprived of occupancy. (*Stoiber v. Honeychuck* (1980) 101 Cal.App.3d 903, 925-926 [holding that “[a] constructive eviction occurs when the acts or omissions ... of a landlord, or any disturbance or interference with the tenant’s possession by the landlord, renders the premises, or a substantial portion thereof, unfit for the purposes for which they were leased, or which has the effect of depriving the tenant for a substantial period of time of the beneficial enjoyment or use of the premises.”].)

In the case at hand, the Complaint alleges that Plaintiffs suffered bites and rash-like injuries while Gregorio was admitted to the Rehabilitation Center. After investigation of Plaintiff’s complaints, Defendant conducted a spray and bedbugs were discovered. Thereafter, Gregorio checked out of the Rehabilitation Center on August 28, 2021. (See Compl. ¶¶ 13-18.) These allegations are insufficient to demonstrate that Plaintiffs left the Rehabilitation Center because

there were continuing inhabitable conditions present in Gregorio's room. As such, Plaintiffs have not sufficiently alleged an actual or constructive eviction.

Tenth Cause of Action

The elements of an action for private nuisance are: (1) the plaintiff must prove an interference with his use and enjoyment of its property; (2) the invasion of the plaintiff's interest in the use and enjoyment of the land must be substantial, i.e., it caused the plaintiff to suffer substantial actual damage; and (3) the interference with the protected interest must not only be substantial, it must also be unreasonable, i.e., it must be of such a nature, duration, or amount as to constitute unreasonable interference with the use and enjoyment of the land. (*Today's IV, Inc. v. Los Angeles County Metropolitan Transportation Authority* (2022) 83 Cal.App.5th 1137, 1176.)

In the case at hand, while not discussed by the parties, in *Lynch v. Peter & Associates etc.* (2024) 104 Cal.App.5th 1181 (*Lynch*), the *Lynch* Court criticized the holding in *El Escorial Owner's Assn. v. DLC Plastering, Inc.* (2007) 154 Cal.App.4th 1337 (*El Escorial Owner's Assn.*) and stated "[n]uisance is an entirely separate cause of action from negligence, and the analysis should focus on whether the plaintiff has alleged all necessary elements of the claim," and that assessing nuisance as duplicative of a negligence claim "ignores the fact that a duty between defendant and plaintiff need not exist to maintain a nuisance claim." (*Id.* at p. 1198.)

Eleventh Cause of Action

The elements of public nuisance are as follows: (1) defendant, by acting or failing to act, created a condition that was either harmful to health or obstructed the free use of property, interfering with the comfortable enjoyment of life or property; (2) the condition affected a substantial number of people simultaneously; (3) an ordinary person would be reasonably annoyed or disturbed by the condition; (4) the seriousness of the harm outweighs the social utility of the conduct; (5) plaintiff did not consent to the conduct; (6) plaintiff suffered harm distinct from that suffered by the general public; and (7) defendant's conduct was a substantial factor in causing plaintiff's harm. (*Birke v. Oakwood Worldwide* (2009) 169 Cal.App.4th 1540, 1548.)

In the case at hand, the Complaint merely alleges that the uninhabitable, unhealthy, and unsanitary conditions affecting Plaintiffs' unit would affect the community at large because the infestation can easily be spread. (See Compl. ¶ 151.) In order to allege a claim for public nuisance, Plaintiffs were required to plead actual harm, as opposed to speculative harm to the public. Plaintiffs also generally conclude that their "use and enjoyment of his unit was greatly affected,

which is separate from the harm suffered by the general public” (Compl. ¶ 152), all without describing the unique harm that they purportedly suffered. These allegations are insufficient.

II. Motion to Strike

Motions to strike can be used to strike any “irrelevant, false or improper matter inserted in any pleading,” or to strike any pleading or part thereof “not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc., § 436.) The grounds to strike shall appear either on the face of the challenged pleading or from matters that are judicially noticed. (Code Civ. Proc., § 437.) Additionally, the court reads the allegations as a whole, with all parts in their context, and assumes their truth. (*Spielholz v. Superior Court (Los Angeles Cellular Telephone Company)* (2001) 86 Cal.App.4th 1366, 1371.)

Defendant seeks to strike out all allegations relating to punitive damages in Paragraphs 47, 67, 71, 93, 94, 109, 110, 129, and Prayer No. 8. However, this motion is now moot in light of the tentative ruling to sustain the demurrer within leave to amend as to the First, Third, and Seventh causes of action.

RULING

1. Demurrer
 - a. Defendant’s demurrer to the First Cause of Action for Battery, is SUSTAINED WITH LEAVE TO AMEND;
 - b. Defendant’s demurrer to the Third Cause of Action for IIED, is SUSTAINED WITH LEAVE TO AMEND;
 - c. Defendant’s demurrer to the Fourth, Fifth, Seventh, and Ninth causes of action, is OVERRULED;
 - d. Defendant’s demurrer to the Sixth Cause of Action for UCL Violations is OVERRULED;
 - e. Defendant’s demurrer to the Seventh Cause of Action for Breach of the Covenant of Quiet Enjoyment, is SUSTAINED WITH LEAVE TO AMEND;
 - f. Defendant’s demurrer to the Tenth Cause of Action for Private Nuisance is OVERRULED;
 - g. Defendant’s demurrer to the Eleventh Cause of Action for Public Nuisance, is SUSTAINED WITH LEAVE TO AMEND;
2. Motion to Strike is deemed MOOT
3. Movant to give Notice